

MASTER SERVICES AGREEMENT

PREAMBLE & RECITALS

This Master Services Agreement ('Agreement') is entered into as of March 1, 2024 ('Effective Date'), by and between Acme Enterprise Solutions Inc., a Delaware corporation having its principal place of business at 100 Enterprise Way, Suite 400, New York, NY 10001 ('Client'), and CloudTech Global Systems LLC, a California limited liability company having its office at 500 Silicon Ave, San Jose, CA 95110 ('Provider').

ARTICLE 1: SCOPE OF SERVICES

1.1 Statements of Work. Provider shall provide software engineering, cloud architecture, and cybersecurity management services as described in individual Statements of Work executed under this Agreement. 1.2 Standard of Performance. Provider warrants that all services shall be performed in a professional, workmanlike manner in accordance with prevailing industry standards.

ARTICLE 2: TERM AND TERMINATION

2.1 Initial Term. The initial term of this Agreement shall commence on the Effective Date and continue for a period of three (3) years. 2.2 Renewal. This Agreement shall automatically renew for successive one (1) year periods unless either party gives written notice of non-renewal at least sixty (60) days prior to the expiration of the then-current term. 2.3 Termination for Cause. Either party may terminate this Agreement immediately upon written notice if the other party breaches any material term and fails to cure such breach within thirty (30) days of receiving written notice.

ARTICLE 3: FEES, INVOICING & PAYMENT

3.1 Fees. Client agrees to compensate Provider in accordance with the fee schedules specified in the applicable Statement of Work. 3.2 Invoicing Schedule. Invoices shall be submitted electronically on the first business day of each calendar month. 3.3 Payment Terms. All undisputed invoices are payable net forty-five (45) days from the date of invoice receipt. 3.4 Late Payments. Overdue payments shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is less.

ARTICLE 4: INTELLECTUAL PROPERTY RIGHTS

4.1 Client IP. Client retains sole ownership of all pre-existing data, customer records, and proprietary materials provided to Provider. 4.2 Work Product Ownership. All custom code, deliverables, documentation, and algorithms developed specifically for Client under any SOW shall constitute 'Work Made for Hire' and belong exclusively to Client upon full payment.

ARTICLE 5: CONFIDENTIALITY & DATA SECURITY

5.1 Confidential Information. Each party agrees to protect the other party's Confidential Information with the same degree of care as its own confidential materials, but not less than reasonable care. 5.2 Data Protection. Provider shall maintain SOC 2 Type II compliance and ISO 27001 certifications throughout the term of this Agreement.

ARTICLE 6: LIMITATION OF LIABILITY

6.1 Liability Cap. EXCEPT FOR BREACHES OF CONFIDENTIALITY UNDER ARTICLE 5 OR INDEMNIFICATION OBLIGATIONS UNDER ARTICLE 7, NEITHER PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL EXCEED \$2,500,000 OR THE TOTAL AMOUNTS PAID BY CLIENT IN THE PRECEDING TWELVE (12) MONTHS, WHICHEVER IS GREATER. 6.2 Consequential Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, SPECIAL, INCIDENTAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES.

ARTICLE 7: GOVERNING LAW & JURISDICTION

7.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles. 7.2 Dispute Resolution. Any dispute arising out of this Agreement shall be resolved through binding arbitration in New York County, New York, under the Commercial Rules of the American Arbitration Association.